

INTERNATIONAL - ORGANIZATION

The Economic and Social Council (ECOSOC)

1. Introduction:

The Economic and Social Council (ECOSOC) is one of the six principal organs of the United Nations (UN).

It was established in 1945 under Chapter X (Articles 61–72) of the UN Charter.

ECOSOC is primarily responsible for promoting international economic, social, and environmental cooperation and development.

It serves as the main platform for discussion, coordination, policy review, and recommendations on global socio-economic issues.

2. Composition and Membership:

ECOSOC is composed of **54** Member States elected by the UN General Assembly.

Each member is elected for a three-year term.

Seats are equitably distributed among regional groups:

- 14 from African States
- 11 from Asia-Pacific States
- 6 from Eastern European States
- 10 from Latin American and Caribbean States
- 13 from Western European and other States

3. Functions and Powers:

ECOSOC performs a wide range of functions as outlined in the UN Charter:

(a) Policy Coordination

Coordinates the economic, social, and related activities of the United Nations and its specialized agencies.

(b) Research and Reports

Conducts studies, prepares reports, and makes recommendations on international economic, social, cultural, educational, and health matters.

(c) Human Rights

Promotes respect for and observance of human rights and fundamental freedoms for all.

(d) Conference and Forums

Organizes major international conferences and forums on global development issues (e.g., High-Level Political Forum).

(e) NGO Participation

Grants consultative status to over 5,000 Non-Governmental Organizations (NGOs), allowing them to participate in its work.

4. Subsidiary Bodies:

ECOSOC oversees several commissions and bodies to carry out its work effectively:

A. Functional Commissions

- Commission on the Status of Women (CSW)
- Commission on Social Development
- Commission on Narcotic Drugs
- Statistical Commission
- Commission on Science and Technology for Development

B. Regional Commissions

- Economic Commission for Africa (ECA)
- Economic Commission for Europe (ECE)
- Economic and Social Commission for Asia and the Pacific (ESCAP)
- Economic Commission for Latin America and the Caribbean (ECLAC)
- Economic and Social Commission for Western Asia (ESCWA)

5. Relationship with Other UN Bodies:

ECOSOC is directly accountable to the General Assembly.

It coordinates with Specialized Agencies like:

WHO (World Health Organization)

ILO (International Labour Organization)

UNESCO (United Nations Educational, Scientific and Cultural Organization)

IMF (International Monetary Fund)

World Bank

These agencies report to ECOSOC on the implementation of economic and social programs.

6. Role in Sustainable Development:

ECOSOC plays a central role in the implementation of the 2030 Agenda and Sustainable Development Goals (SDGs).

It hosts the High-Level Political Forum (HLPF) every July to review progress made on the SDGs.

Focuses on issues like:

Poverty reduction

Health

Gender equality

Education

Climate action

7. NGO Participation and Consultative Status:

ECOSOC is the only UN body with a formal framework for NGO participation.

NGOs can be given General, Special, or Roster consultative status.

They can:

Submit written statements

Make oral presentations

Attend meetings and conferences

8. Key Meetings:

Annual ECOSOC Forum on Financing for Development

Youth Forum

Forum on Science, Technology and Innovation (STI)

These provide platforms for multi-stakeholder dialogue and policy innovation.

9. Limitations and Criticisms:

Despite its importance, ECOSOC faces several challenges:

Limited enforcement power – It can only recommend, not implement.

Overlapping mandates with other UN bodies.

Political divisions between member states can block consensus.

Bureaucratic delays and underfunding slow down progress.

10. Conclusion:

ECOSOC is a vital organ of the United Nations that facilitates global cooperation in development.

It bridges the gap between governments, international organizations, and civil society.

Though it has limitations, its advisory, coordinating, and dialogue functions are essential for tackling global challenges like poverty, inequality, and climate change.

The Secretariat – United Nations

1. Introduction:

The Secretariat is one of the six principal organs of the United Nations, established by the UN Charter (Chapter XV, Articles 97–101).

It is the administrative arm of the UN and is responsible for carrying out the day-to-day work of the organization.

It serves all other UN organs (like the General Assembly, Security Council, ECOSOC, etc.) and helps implement their decisions.

2. Composition:

The Secretariat is composed of:

(a) Secretary-General

The head of the Secretariat.

Acts as the chief administrative officer of the UN.

Appointed by the General Assembly on the recommendation of the Security Council for a five-year term (renewable).

(b) International Staff

The Secretariat has tens of thousands of international civil servants working across the world.

These staff members are not representatives of their countries, but international officials working for the UN as a whole.

3. Functions of the Secretariat:

The Secretariat performs a wide range of essential functions:

(a) Administrative Functions

Prepares reports, studies, documents, and background information for UN meetings and conferences.

Organizes and services UN meetings and prepares official records.

(b) Research and Data Collection

Gathers and analyses information on global social, economic, legal, political, and environmental issues.

(c) Policy Advice and Support

Assists the UN's decision-making bodies by providing policy options, recommendations, and strategic support.

(d) Implementation Support

Helps implement the decisions and resolutions of the UN General Assembly, Security Council, ECOSOC, etc.

(e) Communication and Outreach

Manages the UN's public information services, media relations, websites, and campaigns.

(f) Crisis Management

Provides support during peacekeeping missions, humanitarian emergencies, and disaster relief operations.

4. Role of the Secretary-General:

The Secretary-General is the face and voice of the UN in the global arena. Key roles include:

Symbol of UN ideals and moral authority

Mediator and peacemaker in international conflicts

Spokesperson for the UN

Brings attention to issues threatening international peace and security (Article 99 of the UN Charter)

Heads peacekeeping operations, crisis responses, and diplomatic negotiations

Current Secretary-General (as of 2025): António Guterres (from Portugal)

5. Departments and Offices of the Secretariat:

The Secretariat is divided into multiple departments, each handling different aspects of UN work. Major ones include:

Department of Political and Peacebuilding Affairs (DPPA)

Department of Peace Operations (DPO)

Office for the Coordination of Humanitarian Affairs (OCHA)

Department of Economic and Social Affairs (DESA)

Department of Global Communications

Office of Legal Affairs

6. Headquarters and Global Presence:

Main Headquarters: United Nations Headquarters, New York City, USA

Other major offices in Geneva, Vienna, and Nairobi, with field offices worldwide.

7. Principles of the Secretariat:

Staff must be neutral and impartial.

They cannot take instructions from any government or external authority.

They must uphold the integrity and independence of the UN Charter.

8. Importance of the Secretariat:

Ensures the smooth functioning of the UN.

Provides continuity, coordination, and professional expertise across all UN activities.

Acts as the backbone of the UN's global peace, security, development, and human rights programs.

9. Limitations and Challenges:

Heavy workload and global responsibility

Limited resources and reliance on member states' contributions

Criticized for bureaucracy, inefficiency, and political influence

Staff must maintain neutrality, but face pressure from powerful member states

10. Conclusion:

The Secretariat is the engine room of the United Nations, essential for its daily operations and effectiveness.

Led by the Secretary-General, it provides expertise, continuity, coordination, and global presence.

Despite challenges, its role is indispensable in global governance and international cooperation.

International Labour Organization (ILO)

(A Specialized Agency of the United Nations)

1. Introduction:

The International Labour Organization (ILO) is the first specialized agency of the United Nations.

It was founded in 1919 as part of the Treaty of Versailles, after World War I.

Since 1946, it has been functioning as a specialized agency of the UN.

The ILO deals with labour issues: such as international labour standards, employment, social protection, and promotion of decent working conditions.

Its motto is: "Promoting social justice and internationally recognized human and labour rights."

2. Objectives of the ILO:

The ILO aims to:

Promote decent and productive employment in conditions of freedom, equity, security, and dignity.

Protect labour rights and promote safe and healthy working environments.

Eliminate forced labour, child labour, and discrimination in employment.

Encourage social dialogue among governments, employers, and workers.

3. Structure of the ILO:

The ILO has a unique tripartite structure, meaning three parties are involved in its decision-making:

(a) The International Labour Conference (ILC)

Known as the "parliament of labour".

Meets once a year.

Each member country sends 4 delegates: 2 from the government, 1 from employers, and 1 from workers.

Functions:

Adopts international labour standards (Conventions & Recommendations).

Discusses key labour and social issues.

(b) The Governing Body

The executive council of the ILO.

Composed of 56 members: 28 governments, 14 employers, and 14 workers.

Meets three times a year.

Functions:

Sets the ILO agenda, budget, and program of activities.

Selects the Director-General.

(c) The International Labour Office

The permanent secretariat of the ILO, based in Geneva, Switzerland.

Headed by the Director-General.

Carries out day-to-day functions like research, publishing reports, monitoring conventions, and offering technical assistance.

4. ILO Conventions and Recommendations:

The ILO creates two types of international labour standards:

Conventions: Legally binding international treaties when ratified by member states.

Recommendations: Non-binding guidelines.

Examples of important ILO Conventions:

Convention No. 87 – Freedom of Association and Protection of the Right to Organise (1948)

Convention No. 98 – Right to Organise and Collective Bargaining (1949)

Convention No. 138 – Minimum Age Convention (1973)

Convention No. 182 – Worst Forms of Child Labour Convention (1999)

5. Key Activities and Functions:

Formulating international labour standards

Monitoring compliance by member states

Providing technical assistance and training

Promoting employment policies

Fighting against child labour, forced labour, and discrimination

Supporting social security systems and occupational safety

6. Membership:

ILO has 187 member states (as of 2025).

India is a founding member of the ILO.

All UN member states can become members of the ILO.

7. India and the ILO:

India joined the ILO in 1919.

India has ratified 47 ILO Conventions, including 6 core/fundamental conventions.

The Ministry of Labour and Employment is the nodal agency for ILO in India.

ILO has worked closely with India on:

Skill development

Child labour elimination

Social security reforms

8. Recent Initiatives and Focus Areas:

Promoting Decent Work Agenda

Gender equality in employment

Green jobs and sustainable development

Workers' rights in the gig economy and digital labour platforms

Recovery of jobs post COVID-19 pandemic

9. Criticisms and Challenges:

Enforcement of labour standards is weak (no binding power unless ratified).

Some criticize it for being too bureaucratic and slow.

Balancing between economic growth and labour rights remains a challenge.

10. Conclusion:

The ILO plays a vital role in ensuring fair, safe, and equitable labour practices worldwide.

Its tripartite structure promotes dialogue and cooperation among workers, employers, and governments.

Despite challenges, the ILO remains central to the promotion of international labour rights and social justice.

World Health Organization (WHO)

(A Specialized Agency of the United Nations)

1. Introduction:

The World Health Organization (WHO) is a specialized agency of the United Nations concerned with international public health.

Established on **7 April 1948**, which is celebrated annually as World Health Day.

Headquartered in Geneva, Switzerland.

Its objective is stated in its Constitution as:

"The attainment by all peoples of the highest possible level of health."

2. Definition of Health by WHO:

> Health is "a state of complete physical, mental and social well-being and not merely the absence of disease or infirmity."

3. Objectives of WHO:

Promote and protect global health.

Provide leadership in international public health issues.

Develop and implement health standards and guidelines.

Support countries in healthcare infrastructure and emergencies.

Control and prevent epidemics and pandemics.

4. Structure of WHO:

WHO has the following main bodies:

(a) World Health Assembly (WHA)

The supreme decision-making body of WHO.

Meets annually.

Each member state has one vote.

Functions:

Determines policies of the organization.

Reviews and approves the budget.

Appoints the Director-General.

(b) Executive Board

Composed of 34 technically qualified members elected for 3-year terms.

Functions:

Gives effect to decisions of the WHA.

Advises and facilitates the work of WHO.

Implements policies between WHA sessions.

(c) Secretariat

Headed by the Director-General.

Carries out day-to-day work.

Coordinates health-related programs, research, and technical cooperation.

5. Membership:

WHO has 194 member states (as of 2025).

India is a founding member of WHO.

6. Key Functions and Activities:

WHO works in many health areas globally:

(a) Disease Control and Prevention

Tracks and monitors disease outbreaks (like COVID-19, Ebola, Zika).

Supports immunization campaigns (e.g., polio, measles).

Promotes strategies to eliminate HIV/AIDS, malaria, tuberculosis, etc.

(b) Health System Strengthening

Assists governments in building better healthcare systems.

Provides technical advice, training, and funding.

(c) Setting Standards

Develops international health regulations, medical standards, and guidelines.

Publishes ICD (International Classification of Diseases).

Sets standards for vaccines, medicines, and food safety.

(d) Emergency Response

Provides leadership in health crises such as pandemics, natural disasters, and conflict zones.

Sends medical experts and supplies to affected countries.

(e) Health Research

Supports global health research and innovation.

Publishes studies, data, and recommendations through journals like The World Health Report.

(f) Health Education and Awareness

Runs health campaigns, e.g., against smoking, alcohol abuse, unhealthy diets.

Promotes mental health, reproductive health, and maternal & child care.

7. WHO and India:

WHO collaborates with India on:

Universal health coverage

Immunization programs (like Mission Indradhanush)

Disease surveillance and outbreak control

Ayushman Bharat and other health policies

India hosts the WHO Country Office for India in New Delhi.

8. Recent Initiatives:

COVID-19 Pandemic Response: Monitoring, guidelines, vaccine access (COVAX).

One Health Approach: Linking human, animal, and environmental health.

Global Strategy for Women's, Children's and Adolescents' Health.

Mental health awareness and suicide prevention campaigns.

9. Challenges and Criticisms:

Funding dependency: Relies heavily on voluntary contributions.

Political pressure: Accused of bias or delay (especially during COVID-19).

Implementation gap: Some member states fail to follow WHO standards.

Bureaucracy and resource limitations in health emergencies.

10. Conclusion:

WHO plays a vital role in protecting global health, supporting healthcare systems, and responding to emergencies.

Despite some limitations, it remains the leading authority in international public health.

Its work is crucial for global peace, development, and well-being.

United Nations Educational, Scientific and Cultural Organization (UNESCO)

(A Specialized Agency of the United Nations)

1. Introduction:

UNESCO stands for United Nations Educational, Scientific and Cultural Organization.

It is a specialized agency of the United Nations, formed on 16 November 1945.

Headquartered in Paris, France.

UNESCO's mission is to promote peace, sustainable development, and intercultural dialogue through education, science, culture, and communication.

2. Motto:

> "Building peace in the minds of men and women."

3. Objectives of UNESCO:

Promote quality education for all, including girls and marginalized communities.

Preserve cultural heritage and diversity across the world.

Foster scientific cooperation and innovation.

Defend freedom of expression and promote access to information.

Encourage sustainable development through education and science.

4. Structure of UNESCO:

(a) General Conference

Composed of representatives from all member states.

Meets every 2 years.

Functions:

Sets overall policies and strategic direction.

Approves budget and programs.

Elects' members of the Executive Board and the Director-General.

(b) Executive Board

Composed of 58 member states elected for 4-year terms.

Meets twice a year.

Functions:

Prepares agenda for the General Conference.

Ensures implementation of UNESCO's programs.

(c) Secretariat

Headed by the Director-General, appointed for a 4-year term.

Responsible for day-to-day administration and coordination of all programs.

5. Membership:

UNESCO has 194 member states and 12 associate members (as of 2025).

India is a founding member of UNESCO.

6. Key Areas of Work:

(a) Education

Supports universal primary education and education for sustainable development (ESD).

Promotes literacy, teachers' training, and girls' education.

Leads the Global Education Monitoring (GEM) Report.

(b) Science

Promotes scientific research and cooperation across nations.

Focuses on water security, climate change, biosphere reserves, and sustainable development.

Initiated the Man and the Biosphere Programme (MAB).

(c) Culture

Protects cultural heritage, both tangible and intangible.

Maintains the World Heritage Sites List.

Promotes cultural diversity, traditional knowledge, and creative industries.

(d) Communication and Information

Defends freedom of the press and freedom of expression.

Supports media development and access to information and knowledge.

7. UNESCO and India:

India has several UNESCO World Heritage Sites, including:

Taj Mahal

Qutub Minar

Sun Temple, Konark

Ajanta and Ellora Caves

Jaipur City

India has partnered with UNESCO in:

Education for girls and tribal communities

Biosphere reserves (like Nilgiri and Sundarbans)

Promotion of intangible cultural heritage (e.g., Yoga, Kumbh Mela)

8. Important Initiatives of UNESCO:

World Heritage Convention (1972)

Education for Sustainable Development (ESD)

Memory of the World Programme

Creative Cities Network

Global Education Coalition (COVID-19 response)

9. Challenges Faced by UNESCO:

Funding constraints due to delayed or withdrawn contributions.

Political controversies regarding decisions (e.g., World Heritage listings).

Balancing cultural preservation with economic development.

10. Conclusion:

UNESCO plays a key role in promoting peace through intellectual and cultural cooperation.

It is vital for preserving the world's cultural heritage, supporting quality education, and fostering scientific progress.

With active global participation, including India, UNESCO contributes significantly to global unity, sustainability, and dialogue.

World Trade Organization (WTO)

A Global Organization for International Trade

1. Introduction:

The World Trade Organization (WTO) is the only global international organization dealing with the rules of trade between nations.

Established on 1 January 1995, replacing the General Agreement on Tariffs and Trade (GATT).

Headquarters: Geneva, Switzerland.

It aims to ensure that global trade flows smoothly, predictably, and freely.

2. Objectives of WTO:

Promote free and fair international trade.

Create a rule-based trading system among nations.

Resolve trade disputes peacefully.

Increase economic growth and development through trade.

Reduce tariffs, trade barriers, and promote equal opportunities in global markets.

3. Principles of WTO:

WTO works based on the following core principles:

1. Non-discrimination (Most-Favoured-Nation treatment)
2. Free trade through negotiation
3. Predictability and transparency
4. Encouraging fair competition
5. Special provisions for developing countries

4. Structure of WTO:

(a) Ministerial Conference

The highest decision-making body.

Meets once every two years.

Attended by all member countries.

Reviews all WTO agreements and policies.

(b) General Council

Oversees the day-to-day operations.

Acts on behalf of the Ministerial Conference.

Also functions as the Dispute Settlement Body and Trade Policy Review Body.

(c) Councils for Trade

Three main councils:

Council for Trade in Goods

Council for Trade in Services

Council for Trade-Related Aspects of Intellectual Property Rights (TRIPS)

(d) Secretariat

Headed by the Director-General.

Provides technical and legal support.

Coordinates meetings, handles research, and supports member countries.

5. Membership:

WTO has 164 member countries (as of 2025).

India is a founding member of WTO.

Members represent over 98% of global trade.

6. Functions of WTO:

Administers and enforces WTO agreements.

Acts as a forum for trade negotiations.

Handles dispute settlement between countries.

Monitors national trade policies.

Provides technical assistance and training to developing countries.

Cooperates with other international organizations like IMF and World Bank.

7. WTO Agreements:

Some major agreements under WTO:

GATT (General Agreement on Tariffs and Trade) – for goods

GATS (General Agreement on Trade in Services)

TRIPS (Trade-Related Aspects of Intellectual Property Rights)

Agreement on Agriculture

Agreement on Sanitary and Phytosanitary Measures

8. WTO and India:

India actively participates in all WTO negotiations.

Seeks to protect the interests of its farmers, small industries, and service sector.

Issues India often raises:

Food security and subsidies (Public Stockholding)

Special and Differential Treatment for developing countries

Resistance to forced liberalization in sensitive sectors like agriculture

9. Recent Developments:

Ongoing debates on:

E-commerce rules

Fisheries subsidies

Vaccine patent waivers (TRIPS waiver during COVID-19)

Disputes between developed and developing countries over trade equity

10. Criticisms of WTO:

Biased towards developed nations and multinational corporations.

Weak protection for labour rights and the environment.

Too much emphasis on liberalization, less on fairness.

Dispute resolution process is slow and complex.

11. Conclusion:

The WTO is a crucial institution for managing global trade relations.

It plays an important role in promoting peace, development, and cooperation through trade.

For countries like India, WTO is both a platform of opportunity and a space of challenge to balance growth and protection of national interests.

International Court of Justice (ICJ)

(Also known as the World Court)

1. Introduction:

The International Court of Justice (ICJ) is the principal judicial organ of the United Nations.

Established in 1945 by the UN Charter and began work in 1946.

It is located at The Hague, Netherlands.

ICJ settles legal disputes between states and gives advisory opinions to UN bodies and specialized agencies.

2. Composition of ICJ:

The ICJ consists of 15 judges, and its composition is designed to ensure:

Representation of the main forms of civilization

Representation of the principal legal systems of the world

Key points about composition:

1. Number of Judges: 15

2. Term: 9 years (eligible for re-election)

3. Election Process

Judges are elected by the United Nations General Assembly and the Security Council independently and simultaneously.

A candidate must receive an absolute majority in both bodies.

4. Rotation: One-third of the judges are elected every 3 years.

5. Impartiality

No two judges may be from the same country.

Judges act independently, not as representatives of their country.

President and Vice-President:

The Court elects a President and a Vice-President from among its members for a 3-year term.

Ad hoc Judges:

If a party to a dispute does not have a judge of its nationality on the bench, it may appoint one ad hoc judge for that case.

3. Jurisdiction of ICJ:

ICJ has two types of jurisdiction:

A. Contentious Jurisdiction (Binding decisions)

This is when the ICJ settles disputes between states.

The ICJ can hear a case only if both parties have consented to its jurisdiction.

Methods of giving consent:

1. By Special Agreement: Both states agree to refer a dispute to ICJ.
2. By Treaty: Some treaties have clauses that make ICJ the authority for dispute settlement.
3. Optional Clause Declaration: A state may declare that it accepts ICJ's jurisdiction as compulsory in legal disputes with other states who have made the same declaration.

Examples of disputes:

Border issues

Maritime disputes

Diplomatic relations

Use of force, etc.

B. Advisory Jurisdiction (Non-binding opinions)

ICJ gives advisory opinions on legal questions referred to it by:

The UN General Assembly

The Security Council

Other UN specialized agencies (when authorized)

Purpose: To help international organizations understand international law and apply it properly.

Example: Advisory opinion on the legality of the use or threat of nuclear weapons.

4. Enforcement of Judgments:

ICJ decisions are binding only on the parties involved in the case.

If a country fails to comply with a judgment, the other party may approach the UN Security Council for enforcement.

5. Limitations of ICJ:

ICJ can hear cases only between states — not individuals, companies, or NGOs.

States must consent to the court's jurisdiction.

Enforcement depends on the political will and backing of the Security Council.

ICJ cannot initiate cases on its own.

6. Importance of ICJ:

Promotes peaceful resolution of disputes.

Develops international law.

Offers a neutral and impartial forum for legal issues between nations.

Provides advisory opinions that influence global policy.

ABHISHEK

7. ICJ vs ICC (Do not confuse):

ICJ	ICC
I. Civil Court for disputes between countries	a. Criminal Court for prosecution of individuals
II. Hears cases between states only	b. Prosecutes individuals for serious crimes like genocide, war crimes, crimes against humanity
III. By the United Nations Charter in 1945	c. By the Rome Statute in 2002
IV. Is the principal judicial organ of the UN	d. Is independent from the UN, but may cooperate
V. The Hague, Netherlands	e. The Hague, Netherlands (same city but different institutions)
VI. Depends on UN Security Council for enforcement	f. Has its own prosecutor and investigators, but depends on member state cooperation
VII. Judgments are binding between states	g. Can issue arrest warrants and sentences to individuals
VIII. Only states (countries)	h. Only individuals, not states or organizations
IX. Gives advisory opinions too	i. No advisory role

Conclusion:

The ICJ is a vital institution in promoting rule of law among nations. It contributes to global peace, stability, and justice by resolving disputes and advising UN organs. However, its effectiveness depends heavily on state cooperation and UN enforcement mechanisms.

International Criminal Court (ICC)

1. Introduction:

The International Criminal Court (ICC) is the first permanent international court established to prosecute individuals for serious international crimes.

Established by the Rome Statute on 1 July 2002.

Headquartered in The Hague, Netherlands.

It operates independently from the United Nations.

2. Objective of ICC:

To investigate, prosecute, and punish individuals responsible for:

Genocide

Crimes against humanity

War crimes

Crime of aggression

3. Composition of ICC:

The ICC is composed of several important organs:

A. The Presidency

Consists of:

One President

Two Vice-Presidents

Elected by the judges from among themselves.

Responsible for:

Administration of the court

Representing the court externally

B. The Judicial Divisions

Made up of 18 judges elected for 9 years, not eligible for re-election.

Divided into 3 chambers:

1. Pre-Trial Chamber

2. Trial Chamber

3. Appeals Chamber

Judges must be from different countries, with gender and regional representation.

C. Office of the Prosecutor

Headed by the Prosecutor, who is independent.

Investigates and prosecutes crimes under the Rome Statute.

Can act on:

Referrals by states

Referrals by UN Security Council

Proprio motu (on its own initiative with permission from the Pre-Trial Chamber)

D. Registry

Provides administrative and operational support.

Deals with victim protection, interpretation, records, etc.

4. Jurisdiction of ICC:

The jurisdiction of the ICC is limited and specific:

A. Subject-Matter Jurisdiction (Types of Crimes)

1. Genocide: Intent to destroy a national, ethnic, racial or religious group.
2. Crimes Against Humanity: Widespread or systematic attacks on civilians (murder, rape, torture, etc.).
3. War Crimes: Serious violations of the Geneva Conventions (targeting civilians, child soldiers, etc.).
4. Crime of Aggression: Use of armed force by one state against another violating the UN Charter.

B. Territorial Jurisdiction

ICC can prosecute crimes committed:

On the territory of a State Party

By a national of a State Party

C. Temporal Jurisdiction

ICC only deals with crimes committed after 1 July 2002.

D. Personal Jurisdiction

Only individuals can be tried.

No immunity for presidents, ministers, or officials.

E. Trigger Mechanisms

ICC can take up a case through:

1. State Referral – A member state refers a situation.
2. UN Security Council Referral – Even against non-member states.
3. Prosecutor's Initiative – With Pre-Trial Chamber's permission.

5. Limitations of ICC:

Many powerful countries like USA, China, India are not parties to the Rome Statute.

Relies on state cooperation for arrest and enforcement.

Cannot try corporations or states – only individuals.

Limited to crimes under international criminal law.

6. Importance of ICC:

Ends impunity for the world's worst crimes.

Provides justice to victims of genocide, war, and crimes against humanity.

Complements national legal systems (acts only when national courts can't or won't act).

7. ICC vs ICJ – In Brief:

ICJ: Hears disputes between states

ICC: Prosecutes individuals for international crimes

Conclusion:

The International Criminal Court plays a vital role in ensuring that individuals responsible for serious crimes are held accountable, promoting justice, peace, and human rights worldwide. Despite its limitations, the ICC stands as a symbol of international criminal justice.